

BRIDGESCALE SUCCESS-FEE ADDENDUM

STATUS — SAMPLE ONLY. v0 DRAFT.

Counsel review status: NOT YET REVIEWED. Success-fee structures may be regulated as commission in some jurisdictions; counsel review is mandatory before use, particularly for engagements involving UK / EU / regulated industries.

Reference structure informed by industry-standard success-fee addenda; all language is BridgeScale's own.

ATTACHMENT TO SCOPE OF WORK

This **Success-Fee Addendum** ("Addendum") is attached to and forms part of the **Scope of Work** ("SOW") number [SOW-#####], which is itself an addendum to the **Master Service Agreement** ("MSA") number [MSA-#####] between **BridgeScale**, [Company], and [Operator].

By signing this Addendum, the Company and the Operator agree that the compensation mode for the Engagement under SOW [SOW-#####] is **Cash + Success Fee**, with the cash component governed by the SOW and the success-fee component governed by this Addendum.

Addendum Effective Date: [DATE]

1. CASH COMPONENT

The cash component is paid as set out in SOW §8 (Fees & Payment), unaffected by this Addendum.

The 10% Platform Fee under MSA §3.2 is calculated on the *full Operator Fee*, including any success-fee payouts under this Addendum.

2. SUCCESS-FEE TRIGGER

Select **one** of the following pre-approved trigger events. Triggers outside this list require BridgeScale deal-desk and legal review.

Trigger Whitelist (Launch)

Trigger Code	Trigger Event	Default Verification
■ **QM_ACCEPTED**	**Qualified Meeting Held + Accepted**	Meeting recorded in Company CRM; meeting attendance verified
■ **PARTNER_SIGNED**	**Signed Partner Agreement**	Counter-signed partner / reseller / distributor agreement uploaded
■ **CLOSED_WON**	**Closed-Won Deal**	Opportunity recorded as "Closed-Won" in Company CRM with: invoice issued

Triggers outside this whitelist (for example: revenue-share over time; multi-stage triggers; introductions-only) route to BridgeScale deal-desk and legal review before this Addendum is signed.

3. ATTRIBUTION RULES

3.1 A trigger event qualifies for a Success Fee under this Addendum **only if the Operator was the primary cause** of the event, judged against: (a) records of the Operator's outreach in the engagement workspace; (b) attribution captured in the Company CRM (lead source / opportunity creator); (c) any other reasonable evidence the Parties record at the time of the event.

3.2 **Qualification Criteria** (for QM_ACCEPTED trigger) are recorded in writing at SOW signing. Default criteria (subject to per-engagement override):

Criterion	Default
Decision-maker engaged	Director, Senior Manager, or higher in target buyer org
Account fit	Within the agreed ICP (recorded in SOW §4 Scope)
Fit-to-meet	Buyer agreed to a discovery call OR follow-up demo
Recency	Meeting held within 30 days of trigger date

3.3 **Attribution Window** — a trigger event must occur within **[90 calendar days]** of the Operator's last documented activity related to the underlying account or partner, to qualify for a Success Fee.

3.4 **Disputes** — if the Parties disagree whether a trigger event qualifies, the matter is escalated to BridgeScale deal-desk for a written decision within 5 business days. The decision is binding subject to MSA dispute-resolution.

4. SUCCESS-FEE PAYOUT

Field	Value
Per-event Success Fee	USD [____] per qualifying trigger event *(placeholder)*
Maximum number of events compensated	[____] events per SOW month / per SOW total *(placeholder cap)*
Aggregate Success-Fee Cap	USD [____] over the term of the SOW *(placeholder)*
Verification timing	Within [10 business days] of the trigger event, Operator submits evidence in the engagement workspace
Invoice issued	After verification confirmed, BridgeScale invoices Company for the Success Fee + 10% Platform Fee
Operator payout	Operator paid via the rail and currency specified in SOW §8, on the next regular payout cycle

5. CLAW-BACK FOR REVERSED EVENTS

5.1 If a trigger event is reversed within [90 days] of the trigger (for example: a Qualified Meeting is reclassified as not qualified, a closed-won deal is cancelled before invoice payment, or a partner agreement is terminated), the corresponding Success Fee may be **clawed back** by reducing the Operator's next payout under the SOW or any subsequent SOW between the same Parties.

5.2 If the Operator and the Company are no longer engaged when a reversal occurs, BridgeScale may issue a credit invoice to the Company and a corresponding adjustment notice to the Operator.

5.3 Claw-back does not apply to verified, paid trigger events that occur in the ordinary course (for example: a closed-won deal where the customer pays the invoice and remains a customer).

6. CONFIRMATION

The Company and the Operator confirm that this Addendum, together with the SOW and the MSA, constitutes the complete commercial structure for the Engagement.

Company	Operator	BridgeScale (acknowledgement)	
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Signed by: _____	Signed by: _____	Acknowledged by: _____	
Title: _____	Title: _____	Title: _____	
Date: _____	Date: _____	Date: _____	

DRAFTER NOTES — REMOVE BEFORE LEGAL REVIEW

- **§2 Trigger whitelist** — three triggers at launch (QM_ACCEPTED, PARTNER_SIGNED, CLOSED_WON). Counsel: confirm none of these resemble regulated commission under target-jurisdiction laws (in particular UK Estate Agents Act, EU commercial-agents-directive treatment, US state-level securities/commission rules).
- **§3.2 Default qualification criteria** — placeholder defaults are illustrative. Per-engagement overrides will be common; counsel: confirm the override mechanism is robust.
- **§3.3 90-day attribution window** — placeholder. Some service templates (Closing Support, Partner / Channel Development) may have longer natural attribution windows; consider per-template defaults.
- **§4 Per-event Success Fee** — placeholder USD amount. Founder + Finance to lock guidance bands per service template (typical: \$250–\$2,000 per qualified meeting; \$5,000–\$50,000 per closed-won deal depending on ACV; \$1,000–\$10,000 per signed partner agreement).
- **§4 Aggregate cap** — placeholder. Critical to enforce; uncapped success fees create perverse incentives. Counsel: confirm caps are enforceable.
- **§5 Claw-back** — counsel: confirm enforceability of claw-back provisions, particularly in jurisdictions that protect post-termination earned compensation (some EU corridors).
- **Platform Fee on Success Fee** — §1 says 10% Platform Fee applies to success-fee payouts. Counsel: confirm consistency with MSA §3.2 (the 10% applies to "amounts payable to the Operator" — success fees are part of that amount).
- **VAT / GST treatment** — Operator-side tax treatment of success-fee payments may differ from cash retainer. Tax counsel to confirm per-jurisdiction.
- **Multi-Operator attribution** — addendum currently assumes a single Operator on the SOW. Where the SOW has multiple Operators (rare, but possible for Pipeline Sprint with SDR + AE), attribution rules need

expansion.

- **Connection to the Pre-SOW Commercial Summary** — the Pre-SOW Summary discloses the success-fee component before MSA signing. Counsel: confirm no surprise.

End of Success-Fee Addendum placeholder v0 DRAFT.

SAMPLE